

DEPARTMENT OF VETERANS AFFAIRS

SOLE SOURCE JUSTIFICATION UNDER SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL
ITEMS IN ACCORDANCE WITH FAR 13.5

Acquisition Plan Action ID: 36C250-26-AP-1427

1. **Contracting Activity:** Department of Veterans Affairs, Network Contracting Office 10, Station 610, Northern Indiana Healthcare System (NIHCS), 1700 East 38th Street, Marion, IN 46953. 2237: 610-26-3-025-0015.
2. **Nature and/or Description of the Action Being Processed:** This procurement is for a five month follow-on lease of Pyxis Medication Management Station/MedStation equipment with Carefusion Solutions LLC (OEM) for Northern Indiana Pharmacy Services for Marion, Ft. Wayne, and Jackie Walorski Clinic VA facilities. This five month lease allows NIHCS continued use of the already-installed and in service MedStations to dispense and secure medication until new equipment is exchanged, installed, and operational at the aforementioned facilities.
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** The Pyxis MedStations provides computerized dispensing of medication for up to 143 beds. The current standard of care is to provide rapid access, on-site dispensing and stocking of medications in a secure and accountable environment to providers and nursing staff across nine different campuses. All care facilities employ some form of Automated Dispensing Cabinet as the solution to 24/7, 100% accountable dispensing at the immediate area of patient care.
Estimated delivery: 04/01/2026 – 08/31/2026


4. **Statutory Authority Permitting Restricted Competition:**
FAR 13.5 Simplified Procedures for Certain Commercial Items. The statutory authority for applying the Simplified Procedures for Commercial Items of FAR 13.5 is 41 U.S.C. § 1901 and is implemented by FAR 13.106-1(b)(2) for restricting competition on this procurement. **Competition is restricted on this procurement for the reason below:**

- ☒ (X) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements
- ☐ () Unusual and Compelling Urgency
- ☐ () Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services
- ☐ () International Agreement
- ☐ () Authorized or Required by Statute
- ☐ () National Security
- ☐ () Public Interest

5. **Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):** The existing Pyxis installed

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equipment has been leased since 2019 on contract 36C25019A0051 for five years, contract 36C25024P1820 for 6-month extension, and current one-year follow-on contract 36C25025P0921 that expires 3/31/26. This follow-on requirement is to continue leasing Pyxis Medication Stations equipment for another five-months that are in place throughout the Northern Indiana Healthcare medical facilities. This five month follow-on allows for uninterrupted automated and secure dispensation of medication. The existing equipment must be used until swap out, installation, and approved operation of the new equipment. Accordingly, OEM is the only firm capable of providing the supplies and services described in Section III above without the facility experiencing unacceptable delays in fulfilling its requirements. The need for this equipment constitutes a proprietary sole/limited source situation and to attempt to substitute any other brand would increase risk of jeopardizing standard of care, reliability in equipment function, require new training, and cost prohibitive.

6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:** No efforts were made to solicit other sources due to the circumstances described in Section V above. Pricing is consistent with the current follow-on contract.
7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:** The anticipated cost to the Government has been determined fair and reasonable by previously conducted market research by the researchers who have participated in the acquisition of the same equipment.
8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** SBS queried using NAICS code 339112 and keywords "Medication Management Station" with 0 SD/VOSB concerns. The total value of the acquisition is over the SAT, so no exception to the NMR applies to this procurement, so there can be no small business set aside of any kind. Market research is unable to identify any SD/VOSBs or other small businesses that manufacture the product or sell the product of a SB manufacturer. Therefore, an exclusive set-aside to SB is not permitted. Two SD/VOSB, and one SB authorized distributors identified. However, they can only offer quotes for purchasing equipment. This procurement is a continuum of leased equipment that can only be provided by the OEM. The VA Rule of Two cannot be satisfied, nor can the SBA Rule of Two be met. Product is not on the NMR Class Waiver List. No solicitation will be made. CO intends to sole-source to OEM, LB, existing lease vendor, open market. Pricing for required items is considered fair & reasonable. MedStation equipment is leased with CareFusion Solutions LLC, OEM, a large business, and the equipment is not available via lease from any other company. Plan to sole source to existing lease vendor for a period of performance for five months.
9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** None
10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:** None
11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** A new contract for the new equipment has been established. This follow-on contract is to ensure time for the new equipments exchange, installation, and approved operation within the next five/six months and prior to the expiration of the proposed five month lease.

VHAPG Part 813.5 Simplified Acquisition Procedures for Certain Commercial Items
Attachment 1: Request for Sole Source Justification Template >SAT-SAP under FAR13.5

12. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

02/18/2026

Date

Network Contracting Office 10

13. **Approvals in accordance with the VHAPM Part 806.3 OFOC SOP:** *This part is filled out by Contracting Staff as part of the Justification*

- a. **Contracting Officer or Designee's Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Date

Service & Commodities Team 6

- b. **One Level Above the Contracting Officer (Required over \$350K but not exceeding \$900K):** I certify the justification meets requirements for other than full and open competition.

[Redacted Signature]

Date

Network Contracting Office 10, Service & Commodities Team 6